

		14. In summary, allowing non-psychologists to receive protected psychological test materials, including examinee's specific responses, test questions, and test stimuli, poses a serious threat of widespread social harm by compromising test security. 15. I would not agree to releasing protected test information that would jeopardize future use of tests to a non-psychologist, including attorneys, even under a protective order. If this stipulation cannot be met, I would recuse myself from a case. (Waghalter, Decl., Exh. G, at p. 8.) <i>In Randy's Trucking, Inc. v. Superior Court of Kern County</i> (2023) 91 Cal.App.5th 818, the court recognized there are concerns that a protective order is insufficient to protect test security and that no neuropsychological or psychological expert will comply with an order to turn over testing material and raw data to a plaintiff's counsel. The court pointed out that the matter was procedurally before that court on a petition for writ of mandate to simply determine whether the trial court had abused its discretion based on the rules of evidence. (<i>Id.</i> at p. 848.) Here, the Consolidated Statement addresses aspects that were not fully addressed in <i>Randy's Trucking, Inc. v. Superior Court of Kern County</i>. The court declines to exercise its discretion to order Dr. Boone to turn over testing materials and raw data to Plaintiff's counsel. Plaintiff is therefore ordered to appear for her neuropsychological examination with Dr. Kyle Boone, Ph.D. on April 23, 2025, at 9:30 a.m., located at 24564 Hawthorne Blvd., Suite 208, Torrance, CA 90505, unless otherwise agreed. Plaintiff has the right to audio record the mental examination. Dr. Boone also has a right to audio record the mental examination. (Code Civ. Proc., § 2032.530.) The audio recordings shall be subject to a protective order. Defendant shall promptly submit to the court and serve on all parties a proposed protective order as to the audio recording of the mental examination for the court's signature. Dr. Boone is to turn over raw data to Plaintiff's retained, licensed psychologist expert. The court declines to award any sanctions. Defendants shall give notice of the ruling.
51	Citizens Business Bank v. Sovereign Arts and Metal Finishing LLC, et al. 30-2024-01399265	The court grants Defendants Michael Johnson and Sovereign Arts and Metal Finishing LLC's motion to vacate the default and default judgment entered against them on Plaintiff Citizens Business Bank's Complaint, to recall and quash the writ of execution, and to order the return property levied upon.

Defendants move for relief under Code of Civil Procedure section 473.5 on the grounds that service of the summons did not result in actual notice to Defendants in time to defend the action.

Under Code of Civil Procedure section 415.40, service may be made "by sending a copy of the summons and of the complaint to the person to be served by first-class mail, postage prepaid, requiring a return receipt". To prove service by mail on a nonresident pursuant to Code of Civil Procedure section 415.40, there must be hard evidence of actual delivery—either a signed receipt or other proof that the defendant (or someone authorized by defendant) actually received the mail. (Code Civ. Proc., § 417.20, subd. (a).)

Here, the proofs of service of summons in this case assert that Johnson received service of process on behalf of himself and Defendant Sovereign Arts and Metal Finishing by signing for certified mail in person in Las Vegas on June 4, 2024, at 12:17 pm at his home address. (ROA 9 & 11.)

Defendants present evidence to show that this is false as Johnson was not in Las Vegas at the time he purportedly signed for serve. He was disembarking from a plane at John Wayne Airport in Orange County at that exact time. (Johnson Decl., at ¶ 4). On June 4, 2024, Johnson left his Las Vegas home at approximately 9:45 am for his flight to Orange County John Wayne Airport. (Johnson Decl., at ¶¶ 5, 6, Exh. B [flight itinerary for that day showing that the flight was scheduled to depart at 11:13 am from Las Vegas].) He also includes other evidence to show he was on a flight arriving in California at the relevant time. (Johnson Decl., Exhs. C, D, E.) It was impossible for him to have signed for the certified mail as claimed. Thus, Defendants have shown that service was not effectuated as indicated on the signed receipt. Defendants have averred to a lack of actual notice.

Plaintiff did not file any timely opposition to the motion. The motion is granted. The court vacates the default (ROA 13) and default judgment (ROA 24) and quashes the writ of execution based thereon (ROA 34). Any levied property is ordered to be returned to Defendants. No later than April 28, 2025, Defendants shall electronically file the proposed answer that they had lodged with the court. (See ROA 47.) Defendants shall serve their answer pursuant to the Code of Civil Procedure.

The court hereby sets a trial for May 26, 2026, at 9 am in Department C21. Should any party wish to have a jury trial, they must post jury fees no later than May 12, 2025. Otherwise, trial will proceed as a court trial.

		Defendants shall give notice of the ruling, of the May 12, 2025 deadline to post jury fees, and of the May 26, 2026 trial date to all parties and to the levying officer.
52	Hanselmen v. Nasereddin, et al. 30-2024-01426304	Defendant Fouad Nasereddin and Lama Hamam's ("Defendants") motion to dismiss is denied. The court notes that the proof of service of the moving papers does not list the address of record for Plaintiff Connor Hanselmen's counsel. (ROA 26.) However, Plaintiff has opposed the motion on the merits and has not objected to this defect. Additionally, the court notes Plaintiff's proof of service reflects the opposition was electronically served on defendants. However, as self-represented litigants, electronic service on Defendants is not proper without their express consent. (Cal. Rules of Court, rule 2.251(c)(3); Orange County Superior Court Local Rule 352.) On the merits, the motion is denied. There is no statutory authority for using a motion to dismiss as a method to challenge opposing pleadings. Under the Code of Civil Procedure, motions to dismiss are expressly authorized only on specified grounds. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 7:370.) Here, the motion to dismiss is not based upon any of the specified grounds. Some courts have held that a motion to dismiss may serve the same function as a general demurrer. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 7:370.) A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code sections 451 or 452. On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-967.) Even if the court were to treat the motion to dismiss as a general demurrer, the motion would be denied because it relies on matters that are outside of the Complaint. Plaintiff's allegation that Defendants "were the respective owners and/or drivers of a certain 2015 FORD FOCUS SIL" is presumed to be true. (See Complaint, at ¶ 3.) Any special demurrer for uncertainty would also be overruled because the